

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1968

By: Williams

AS INTRODUCED

An Act relating to the Pardon and Parole Board; amending 57 O.S. 2021, Sections 332.1, 332.1A, 332.4 and 332.15, which relate to powers, duties and compensation of Pardon and Parole Board members; authorizing the Pardon and Parole Board to employ alternate members; allowing the Chair of the Board to assign alternate members under certain circumstances; granting alternate members the same power and authority as regular members; providing for the appointment of alternate members; requiring alternate members to receive training; deeming members and alternate members full-time salaried employees of the Board; establishing compensation amounts; increasing number of allowed meeting absences; prohibiting alternate members from representing or voting on certain matters before the Board; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 332.1, is amended to read as follows:

Section 332.1. A. The Pardon and Parole Board created by Article VI, Section 10, of the Oklahoma Constitution is authorized to employ professional investigators and such clerical and

1 administrative personnel as may be required to carry out the duties
2 and responsibilities under the provisions of this act.

3 B. The Pardon and Parole Board shall be authorized to employ
4 alternate members to serve on the Board.

5 C. The Chair of the Pardon and Parole Board may assign
6 alternate members to serve in the absence of a regular member and
7 such alternate members shall have all the powers and authority of a
8 regular Pardon and Parole Board member when so assigned.

9 D. Alternate members of the Board shall be appointed as
10 follows:

11 1. One alternate member of the Board shall be appointed by the
12 Chief Justice of the Supreme Court and shall have a minimum of not
13 less than five (5) years of experience as a former prosecutor;

14 2. One alternate member of the Board shall be appointed by the
15 Presiding Judge of the Criminal Court of Appeals and shall have a
16 minimum of:

17 a. not less than five (5) years of experience as a former
18 public defender, or

19 b. not less than ten (10) years of experience handling
20 felony criminal cases as a defense attorney;

21 3. One alternate member of the Board shall be appointed by the
22 Governor and shall be a former judge of the Oklahoma Court of
23 Criminal Appeals or a former judge of a district court who presided
24 over a criminal court docket;

1 4. One alternate member of the Board shall be appointed by the
2 Governor and shall be a licensed mental health professional with
3 expertise in offender rehabilitation; and

4 5. One alternate member of the Board shall be appointed by the
5 Governor and shall have a minimum of not less than five (5) years of
6 experience as a parole officer or corrections officer.

7 SECTION 2. AMENDATORY 57 O.S. 2021, Section 332.1A, is
8 amended to read as follows:

9 Section 332.1A. A. Each member and each alternate member of
10 the Pardon and Parole Board shall receive at least twelve (12) hours
11 of training for the first year and six (6) hours of training per
12 year thereafter on matters relating to the duties of the Board. The
13 training shall be provided by personnel of the Pardon and Parole
14 Board.

15 B. Each member and each alternate member of the Pardon and
16 Parole Board shall complete annual training based on guidance from
17 organizations that provide training and technical assistance related
18 to the probation and parole process. Annual training curriculum
19 shall include, but not be limited to, identifying, understanding and
20 targeting criminogenic needs, the principles of effective
21 intervention, core correctional practices and how to support and
22 encourage offender behavior change.

23 SECTION 3. AMENDATORY 57 O.S. 2021, Section 332.4, is
24 amended to read as follows:

1 Section 332.4. A. Upon the effective date of this act, members
2 of the Pardon and Parole Board shall be deemed regular full-time,
3 salaried employees of the Pardon and Parole Board.

4 B. The Chair of the Pardon and Parole Board shall be selected
5 by the Board. ~~The Chair of the Pardon and Parole Board shall~~
6 ~~receive Twenty-four Thousand Eight Hundred Dollars (\$24,800.00) per~~
7 ~~annum, payable monthly, in the following allotment:~~

8 ~~1. Four Hundred Dollars (\$400.00) for preparation for said~~
9 ~~meeting; and~~

10 ~~2. One Thousand Six Hundred Sixty-seven Dollars (\$1,667.00) for~~
11 ~~the regular monthly Board meeting.~~

12 B. 1. The members of the Board shall receive ~~Twenty-two~~
13 ~~Thousand Eight Hundred Dollars (\$22,800.00)~~ a salary of Eighty-five
14 Thousand Dollars (\$85,000.00) per annum, payable monthly ~~in the~~
15 ~~following allotment:~~

16 ~~1. Four Hundred Dollars (\$400.00) for preparation for said~~
17 ~~meeting; and~~

18 ~~2. One Thousand Five Hundred Dollars (\$1,500.00) for the~~
19 ~~regular monthly Board meeting.~~

20 2. The alternate members of the Board shall receive a salary of
21 Seventy-five Thousand Dollars (\$75,000.00) per annum, payable
22 monthly.

23 C. 1. Failure of any member to attend ~~one~~ two Board ~~meeting~~
24 meetings in any calendar year, except for justifiable excuse as

1 determined by the Chair pursuant to written policy established by
2 the Board, shall preclude the right of the member to receive his or
3 her monthly compensation established by subsection ~~A or~~ B of this
4 section.

5 2. In addition, any member who fails to attend ~~two~~ three or
6 more Board meetings in any calendar year except for extraordinary
7 circumstances as determined by the Chair pursuant to written policy
8 established by the Board shall be deemed to have committed official
9 misconduct as such term is defined by Section 93 of Title 51 of the
10 Oklahoma Statutes. To initiate a removal from office pursuant to
11 this paragraph, the Board shall pass a resolution by a majority of
12 the members of the Board detailing the alleged misconduct. Such
13 removal shall be subject to the provisions of Chapter 3 of Title 51
14 of the Oklahoma Statutes.

15 3. Failure to attend meetings of the Board, pursuant to the
16 policy established by the Board, shall constitute cause for removal
17 pursuant to Section 10 of Article VI of the Oklahoma Constitution.

18 SECTION 4. AMENDATORY 57 O.S. 2021, Section 332.15, is
19 amended to read as follows:

20 Section 332.15. A. From and after the effective date of this
21 act, no member or alternate member of the Pardon and Parole Board
22 ~~and/or~~ or their law firm or law partners or associate may represent
23 in a legal capacity any inmate incarcerated in any state penal
24 institution. If a member or alternate member of the Pardon and

1 Parole Board, or his or her law partners or associate or any member
2 of his or her law firm undertakes the representation of an inmate in
3 violation of this prohibition, the member or alternate member of the
4 Board shall forfeit his or her office. In any case in which an
5 inmate requesting a pardon or parole was represented in a legal
6 capacity by any member or alternate member of the Pardon and Parole
7 Board ~~and/or~~ or their law firm or law partners or associate prior to
8 imposition of a prison term, the Board member or alternate Board
9 member who represented such inmate shall be disqualified from voting
10 on ~~such inmate's~~ the request of the inmate for a pardon or parole.

11 B. A member or alternate member of the Pardon and Parole Board
12 shall uphold and promote the independence, impartiality, fairness,
13 and integrity of the Board, and should avoid impropriety or the
14 appearance of impropriety.

15 C. If any Pardon and Parole Board member or alternate member
16 determines circumstances would cause a reasonable person with
17 knowledge of all the relevant facts to question his or her
18 impartiality in a specific matter, or creates the appearance of
19 impropriety, the Pardon and Parole Board member shall disclose any
20 potential conflict of interest and shall withdraw from participation
21 in the matter.

22 SECTION 5. This act shall become effective November 1, 2025.

23

24 60-1-10864 GRS 01/13/25